

#	Case Name	Tentative
	America, LLC 2026-01550474	"Under Code of Civil Procedure section 483.010, a prejudgment attachment may issue only if the claim sued upon is (1) a claim for money based upon a contract, express or implied; (2) of a fixed or readily ascertainable amount not less than \$500; (3) either unsecured or secured by personal property, not real property (including fixtures); and (4) commercial in nature." (<i>Goldstein v. Barak Construction</i> (2008) 164 Cal.App.4th 845, 852.) Plaintiff must also establish the probable validity of its claim. (<i>Id.</i>) The application must be supported by an affidavit or declaration showing that the applicant, on the facts presented, would be entitled to a judgment on the claim upon which the attachment is based. (<i>Lydig Construction, Inc. v. Martinez Steel Corp.</i> (2015) 234 Cal.App.4th 937, 943-944.) Here, Plaintiff has shown that the application is based upon a claim for money based upon an express contract--namely, the Fifth Cause of Action for Breach of Contract arising out of Plaintiff's exercise of his "put option." (Mikhael Decl., Exh. B.) Plaintiff has shown that the amount of the claim is readily ascertainable by reference to the terms of the contract that involved granting Plaintiff 79,064 Class A Units of TOPCO, which were valued at \$25.30 per share (Exh. B, ¶ 2.2) and that such units would vest and be repurchased by TOPCO either over a 5 year period following the execution of the agreement (¶ 3.1) or the occurrence of a defined event that would trigger acceleration of the vesting. (¶ 3.2.1.) Plaintiff must also make an evidentiary showing of the probable validity of the claim. (Code Civ. Proc. §484.090, subd, (a)(2).) Cal. Code Civ. Proc. §481.190 states, "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." The elements of a claim for breach of contract are (1) the existence of a contract; (2) the plaintiff's performance or excuse from performance of the contract; (3) the defendant's breach; and (4) resulting damages to the plaintiff. (See <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Plaintiff has failed to establish the probable validity of the contract claim with admissible evidence. Plaintiff asserts termination without cause to trigger accelerated vesting. Section 4.2 describes that Plaintiff must sign the attached Separation Agreement within 60 days lest the accelerated

[illegible]